

Amendment No. 1 to SB1331

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1331

House Bill No. 1131*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 36-6-101, is amended by deleting subdivision (a)(2)(A)(i) and substituting:

(i) Except as provided in this subsection (a) and § 36-6-102, there is a presumption, rebuttable by a preponderance of the evidence, that joint legal custody and equally shared parenting time is in the best interest of the child. For the purpose of assisting the court in determining whether a deviation from joint legal custody and equally shared parenting time is warranted, the court may direct that an investigation be conducted. The court must base an order for any custody arrangement other than joint legal custody and equally shared parenting time on written findings of fact and conclusions of law to the contrary and include the findings and conclusions in the custody order. The burden of proof necessary to modify an order of joint legal custody and equally shared parenting time at a subsequent proceeding is by a preponderance of the evidence.

SECTION 2. Tennessee Code Annotated, Section 36-6-106(a), is amended by inserting the following language after the first sentence:

There is a presumption, rebuttable by a preponderance of the evidence, that joint legal custody and equally shared parenting time is in the best interest of the child.

SECTION 3. Tennessee Code Annotated, Section 36-6-106(a), is amended by deleting "In taking into account the child's best interest," and substituting "If the court determines that a deviation from joint legal custody and equally shared parenting time is warranted, then".

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it, and applies to all custody determinations made on or after that date.